

Pradeep Singh v. State of U.P. & 2 Others

High Court of Judicature at Allahabad · Division Bench · 15 July 2026 · Writ - C No. 15707 of 2026 · **Writ disposed; relegated to s.127(1) appeal; no coercive recovery for four months subject to pre-deposit.**

HEADNOTE

Whether a connection was energised on the date of the Connection Energisation Certificate (4 September 2024) or only after a meter was installed (and therefore whether the intervening supply was theft) is a disputed question of fact that cannot be decided under Article 226. The consumer is relegated to an appeal under Section 127(1) of the Electricity Act, 2003, to be filed within one month and decided within two months without a limitation objection. No coercive recovery on the 28 March 2026 demand for four months or until the appeal is decided, whichever is earlier, subject to statutory pre-deposit. An earlier 18 May 2026 order of a different Bench had stayed that demand and required a written explanation of unmetered energisation; this disposal supersedes it.

FACTUAL SUMMARY

Pradeep Singh applied for a connection on 4 September 2024, tendered fees and completed formalities. He produced a Connection Energisation Certificate showing release that day. On 13 September 2024 enforcement alleged theft and an FIR was registered; a meter was installed the next day. The licensee raised a large bill, later reduced after an earlier writ; he challenged the Executive Engineer's 28 March 2026 reduced demand. On 18 May 2026 (Arindam Sinha and Satya Veer Singh, JJ.) the demand was stayed and the licensee was asked why a connection was given without a meter; the licensee said no connection was given and the petitioner joined the wires. On 15 July 2026 a different Division Bench heard the matter. The licensee said the connection number was allotted on application but energised only after the meter, hence theft. The petitioner relied on the energisation certificate.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

unmetered-energisation-versus-theft-is-disputed-fact-relegated-to-s.127

HOLDING

Whether the connection was energised on 4 September 2024 as the Connection Energisation Certificate states, or only after installation of the meter, is a disputed question of fact that cannot be adjudicated in writ jurisdiction. The petitioner is relegated to the statutory appeal under Section 127(1). If the appeal is filed within one month, the appellate authority shall decide it preferably within two months of filing, without entering into limitation. No coercive steps on the 28 March 2026 demand for four months from this order or until the appeal is decided, whichever is earlier, subject to the pre-deposit under Section 127. ¶ 4-8

PRINCIPLE TAGS

relegate-to-statutory-remedy Whether a connection was energised on the date of the Connection Energisation Certificate (4 September 2024) or only after a meter was installed (and therefore whether the intervening supply was theft) is a disputed question of fact that cannot be decided under Article 226.. ¶ 4-8

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE CONNECTION WAS ENERGISED ON 4 SEPTEMBER 2024 WITHOUT A METER, OR THE PETITIONER JOINED THE WIRES (THEFT)

¶ 3-5

NOT DECIDED — WHETHER THE REDUCED DEMAND DATED 28 MARCH 2026 SHOULD BE QUASHED ON THE MERITS

¶ 6-8

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.